

HEADNOTE

“- Regarding the payment of court fees under R. 220.1(a) RoP for a counterclaim for revocation, following the adoption of the amended Table of court fees, the current wording is to be understood as referring to the fee to be paid for filing a counterclaim for revocation in the first instance at the time of filing the appeal raised by 10%.

- As a general principle, fees shall be paid in accordance with the value of the action as determined by the Court of First Instance. The parties are not entitled to unilaterally determine or amend the value of the action for the purpose of calculating the applicable court fees. Should a party consider that the value of the action determined by the Court of First Instance is incorrect, objections concerning the determination of the value of the action may be raised as part of the grounds of appeal.

- If the value of the action determined by the CFI is not disputed as such, but there is reason, which is apparent on face value, to determine the court fees based on a lower value of the action on appeal than that set by the CFI for the first instance proceedings, this may be requested and the Court of Appeal may provisionally agree therewith. However, the Court of Appeal can and shall only finally decide on the value of the action on appeal after having heard the respondent, who may comment on that in the Statement of response.

- If the Court of Appeal subsequently determines that the value of the action should be assessed differently, the court fees shall be recalculated accordingly and, where applicable, any overpaid amount shall be reimbursed or additional fees shall have to be paid by the appellant.”

COURT
Court of Appeal Luxembourg

PATENT
EP 1 552 399

KEYWORDS

court fees on appeal

PROCEEDINGS
Counterclaim for revocation

Integrated circuit and method for
establishing transactions

Rule 220 Appealable decisions

SUMMARY

The Court of Appeal Luxembourg ruled on a counterclaim for revocation. The patents at issue relate to integrated circuit and method for establishing transactions. According to the headnotes of the decision, court fees for a counterclaim for revocation filed on appeal are calculated by increasing the first-instance fee by 10 percent in accordance with the amended Table of court fees. The value of an action is determined by the Court of First Instance, and parties cannot unilaterally change this value for fee purposes, though they may challenge it through their grounds of appeal. When the CFI's valuation is not disputed but circumstances suggest a lower value should apply on appeal, the appellant may request this adjustment and the Court of Appeal may provisionally agree pending the respondent's comments in the Statement of response. If the Court of Appeal ultimately determines a different value for the action on appeal, court fees must be recalculated accordingly, with any overpaid amounts reimbursed or additional fees due from the appellant.